

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
QUADIER LEWIS,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentNEW YORK CITY POLICE OFFICER KEVIN S.
RICHARDS, Shield No. 17889, and NEW YORK CITY
POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 1, 2022

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: NEW YORK CITY POLICE OFFICER KEVIN S. RICHARDS, Shield No. 17889, 73rd
Precinct - Criminal Intel Section; 1470 East New York Avenue, Brooklyn, New York 1121

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

QUADIER LEWIS,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

NEW YORK CITY POLICE OFFICER KEVIN S.
RICHARDS, Shield No. 17889, and NEW YORK CITY
POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.

----- X

Plaintiff QUADIER LEWIS, by her attorneys, Shulman-Hill, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 30, 2021, at approximately 11:00 p.m., plaintiff QUADIER LEWIS, while lawfully in the vicinity of Sutter Avenue and Stone Avenue, County of Kings, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City ("NYPD") police officers. Plaintiff sustained serious injuries to her wrists due to the excessive force used in her unlawful arrest, as well as suffering mental and emotional injury as a result. Plaintiff was unlawfully imprisoned at the NYPD 73rd Precinct and Kings County Central Bookings for approximately three (3) days before Plaintiff was finally released from unlawful custody. All charges against the plaintiff were dismissed and sealed on or around April 29, 2022. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff QUADIER LEWIS is a resident of the state of New York.

3. NEW YORK CITY POLICE OFFICER KEVIN S. RICHARDS, Shield No. 17889, is and was at all times an officer, employee, and agent of the New York City Police Department.

4. NEW YORK CITY POLICE OFFICER KEVIN S. RICHARDS, Shield No. 17889, was at all times relevant herein, on information and belief, assigned to the Criminal Intel Section of the NYPD 73rd Precinct.

5. NEW YORK CITY POLICE OFFICER KEVIN S. RICHARDS, Shield No. 17889, is being sued in his individual and official capacities.

6. NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN, were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN, are being sued in their individual and official capacities

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On July 30, 2021, at approximately 11:00 P.M., Plaintiff was lawfully at or around Sutter Avenue and Stone Avenue, County of Kings, State of New York, when she was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and subsequent denial of various federal constitutional rights by the defendant NYPD police officers.

12. At the aforementioned place and time, Plaintiff was walking with a friend to a block party when they observed five (5) defendant NYPD police officers pull up in a vehicle and get out.

13. Plaintiff was approached by defendant police officers who then grabbed her and began searching her pockets.

14. It was at this point the defendant NYPD officers began to unlawfully arrest the Plaintiff, restraining her so tightly with metal cuffs that it caused injury to her wrists.

15. Plaintiff did not resist arrest.

16. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendant NYPD police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

17. At no point did defendant NYPD police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

18. Nevertheless, Plaintiff was arrested and placed in the back of an NYPD vehicle, and thereafter transported against her will to the 73rd Precinct where she was processed and placed in a holding cell.

19. After approximately eighteen (18) hours in custody at the 73rd Precinct, she was transported to Kings County Central Bookings and placed in another holding cell.

20. Upon information and belief, during her time in unlawful custody, defendant Officers falsely communicated allegations that Plaintiff had committed a crime to the Kings County District Attorney's Office, to wit: Criminal Possession of a Weapon.

21. After approximately three (3) days in custody, on or about August 2, 2021, Plaintiff was arraigned in criminal court, charged with crimes she did not commit, and released from custody on her own recognizance.

22. The charges falsely made against the Plaintiff were dismissed in the interest of justice on or around April 29, 2022.

23. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

24. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

25. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

26. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

27. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

28. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

29. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

30. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

31. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION
False Imprisonment

32. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

33. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

34. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

35. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

36. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

37. The use of excessive force by defendants by, amongst other things, tackling and roughly handcuffing the Plaintiff, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

Failure to Intervene

38. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

39. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

40. Defendants failed to intervene to prevent the unlawful conduct described herein.

41. As a result of the foregoing, Plaintiff suffered significant injuries to her wrists, her liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subject to other physical constraints.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

43. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

44. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

46. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

47. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

48. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

49. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

SEVENTH CAUSE OF ACTION**Violation of Article I, § 12 of the New York State Constitution**

50. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

51. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;

- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

52. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

53. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

54. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION **Malicious Prosecution**

55. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

57. Defendants commenced and continued a criminal proceeding against Plaintiff.

58. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

59. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

NINTH CAUSE OF ACTION **Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

60. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

62. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in

his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

63. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately twenty-four (24) hours in total.

64. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

65. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

66. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

67. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

68. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

70. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

71. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

72. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

73. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

74. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

75. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

76. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately twenty-four (24) hours in total.

77. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer’s Liability for Defendant Officer’s Failure to Intervene in Violation of Plaintiff’s AC 8-802 Rights

78. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

79. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

80. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

81. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

82. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and

to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

83. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

85. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

JURY DEMAND

86. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
December 1, 2022

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: NEW YORK CITY POLICE OFFICER KEVIN S. RICHARDS, Shield No. 17889,
NYPD 73rd Precinct - Criminal Intel Section; 1470 East New York Avenue, Brooklyn,
New York 11212

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 1, 2022

Cary London
CARY LONDON, ESQ.